

ESTATE OF DeREIS

10PR7129

MOTION TO COMPEL

On August 21, 2023, Deborah Burke ("Burke") served plaintiffs/cross-defendants DeReis ("DeReis") form interrogatories and request for production of documents. Initial responses were served ; thereafter, despite promises to further respond, the petitioner claims that no supplemental responses have been served. The Motion To Compel was served on November 21, 2023.

DeReis filed a Response/Opposition to the Motion to Compel with copies of e-mails showing attachments constituting supplemental responses denominated as case number 21CV45133.

The procedural presentation of the discovery issues and parallel discovery in the related case, as well as new counsel substituting for the moving party, is convoluted. The Court will order that irrespective of any Form Interrogatory responses previously provided in either related matter, responses without objection based on "previously provided" answers will be provided within thirty days of notice of this order. The court questions the efficacy of an objection based on assertions that questions have been "asked and answered" or "previously answered."

The Separate Statement in Support of Motion to Compel filed Nov. 21, 2023, sets forth a continuing Response to Form Interrogatories that "Object as previously answered . . ." When matters are related, as here, discovery sent in one matter must be responded to fully and appropriately, even if the requests and responses fully mirror those in the other matter.

Motion to compel is GRANTED. Cross-defendants DeReis are ordered to serve verified responses, without the objection of "already previously been answered [in a related matter]", within 30 (thirty) days..

The court does not award sanctions as it does not deem either party a prevailing party.

The Clerk shall provide notice of this Ruling to the parties forthwith. Burke to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.